

24STLC04526 24STLC04526

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-04

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Case Number: 24STLC04526 Hearing Date: August 4, 2026 Dept: 26

TENTATIVE RULING:

Motion of Plaintiff City of Los

Angeles, acting by and through The Los Angeles Department of Water and Power, for Entry of Judgment Against Defendant is granted in the amount of \$22,140.43, plus \$1,351.50 interest.

Plaintiff is file a proposed judgment

consistent with this Order within ten days of service of this Order.

Analysis:

On June 24, 2024,

Plaintiff City of Los Angeles, acting by and through The Los Angeles Department of Water and Power ("Plaintiff"), filed this action for negligence against Defendant Rushema Purfoy ("Defendant"). On July 18, 2024, Plaintiff filed a First Amended Complaint. On October 3, 2025, Plaintiff filed a Stipulation and Order for Stipulated Settlement, which the Court entered on the same day. (Stip and Order, 10/03/25.) The action was dismissed with the Court retaining jurisdiction pursuant to Code of Civil Procedure section 664.6.

Plaintiff filed the instant Motion for Entry

of Judgment Against Defendant on May 4, 2026. The Motion was served on the same day via first-class mail to Defendant. To date, no opposition has been filed.

Discussion

The instant Motion is brought under Code of Civil Procedure, section 664.6, which states in relevant part:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

(Code Civ. Proc., § 664.6, subd.

(a).) "Parties" include "an attorney who represents the party" and an insurer's agent. (Code Civ. Proc., § 664.6, subd. (b).) The settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought. (J.B.B. Investment Partners, Ltd. v. Fair (2014) 232 Cal.App.4th 974, 985.) The settlement agreement complies with the statutory requirements set forth above because it was signed by both parties. (Motion, Georgoulis Decl., Exh. A, p. 7.)

The settlement provided that Defendant would pay Plaintiff \$10,000.00 in monthly payments starting on September 20, 2025. (Id. at Exh. A, ¶3.) The settlement agreement also provided that in the event of Defendant's default, Plaintiff may seek judgment in the full amount of liability (\$22,140.43) less payments made, plus pre-judgment and post-judgment interest, and reasonable attorney's fees and costs to enforce the settlement. (Id. at Exh. A, ¶¶2, 8, 10.) Defendant has made no payments towards the settlement. (Id. at ¶8.) Therefore, Plaintiff is entitled to judgment in the amount of \$22,140.43 plus \$1,351.50 interest, which accrued from September 21, 2025 to August 4, 2026 at seven percent per annum. (Id. at ¶¶10-12.)

Plaintiff filed a proposed Order for Entry of Judgment. The Court below orders Plaintiff to file a proposed Judgment for the Court's signature.

Conclusion

Motion of Plaintiff City of Los

Angeles, acting by and through The Los Angeles Department of Water and Power,
for Entry of Judgment Against Defendant is granted in the amount of \$22,140.43,
plus \$1,351.50 interest.

Plaintiff is file a proposed judgment

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Moving party to give notice.